

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ariel Courage	Team: Squad #06	CCRB Case #: 201500655	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 01/27/2015 8:00 PM	Location of Incident: Front of § 87(2)(b)	18 Mo. SOL 7/27/2016	Precinct: 05		
Date/Time CV Reported Thu, 01/29/2015 1:18 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 01/29/2015 1:18 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Julio Lasalle	3518	936912	GANG M
2. DT3 James Cleary	696	946866	GANG M

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Julio Lasalle	Abuse: Det. Julio Lasalle stopped § 87(2)(b)	A . Substantiated
B . DT3 James Cleary	Abuse: Det. James Cleary stopped § 87(2)(b)	B . Exonerated
C . DT3 James Cleary	Abuse: Det. James Cleary drew his gun.	C . Unfounded
D . DT3 Julio Lasalle	Abuse: Det. Julio Lasalle frisked § 87(2)(b)	D . Unsubstantiated
E . DT3 Julio Lasalle	Abuse: Det. Julio Lasalle searched § 87(2)(b)	E . Unsubstantiated
F . DT3 James Cleary	Abuse: Det. James Cleary questioned § 87(2)(b)	F . Substantiated
G . DT3 James Cleary	Abuse: Det. James Cleary frisked § 87(2)(b)	G . Substantiated
H . DT3 James Cleary	Abuse: Det. James Cleary searched § 87(2)(b)	H . Substantiated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On January 29, 2015, § 87(2)(b) called the CCRB to file a complaint on behalf of her grandson, § 87(2)(b) and his friend, § 87(2)(b) § 87(2)(b) § 87(2)(b)'s father, also called the CCRB to file this complaint. On January 27, 2015, at 8:00 p.m., in the vicinity of § 87(2)(b) in Manhattan, Det. Julio Lasalle of Gang Manhattan stopped § 87(2)(b) while Det. James Cleary stopped § 87(2)(b) (**Allegations A and B**). Det. Cleary allegedly drew his gun (**Allegation C**). Det. Lasalle frisked and searched § 87(2)(b) (**Allegations D and E**). His partner, Det. James Cleary, questioned, frisked, and searched § 87(2)(b) (**Allegations F, G, and H**).

Det. Lasalle recovered a box cutter from § 87(2)(b) who was arrested for § 87(2)(a) 160.50 and transported to the 7th Precinct stationhouse. § 87(2)(b) was released from the scene without a summons.

Mediation, Civil, and Criminal Histories

This case was not eligible for mediation due to § 87(2)(b)'s arrest and because § 87(2)(b) and § 87(2)(b) both indicated that they planned to file a lawsuit. As of June 22, 2015, § 87(2)(b) and § 87(2)(b) have not filed a Notice of Claim with respect to this incident (Board Review 01) § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) and § 87(2)(b) (Board Review 03 and 04).
- Det. Lasalle has been a member of the service for 10 years. § 87(2)(g)
- Det. Cleary has been a member of the service for six years. § 87(2)(g)

Recommendations

Allegations Not Pleaded

- § 87(2)(g)
- § 87(2)(g)
- § 87(2)(g)

Allegation A – Abuse of Authority: Det. Julio Lasalle stopped § 87(2)(b)

It is undisputed that Det. Lasalle stopped § 87(2)(b) (Board Review 06) acknowledged that he was carrying a box cutter in his front right pants pocket at the time of this incident. § 87(2)(b) told the CCRB that he carries the box cutter for his own protection, fearing for his safety after being shot in the leg (MISD results reveal the aforementioned shooting occurred in April of 2014 (Board Review 07)). § 87(2)(b) said that the box cutter was fully inside of his front pants pocket so that no part of it was visible to public view. § 87(2)(b) also carried his wallet and his cell phone. He said that none of these items, including the box cutter, created any visible bulges in his clothing.

§ 87(2)(b) and § 87(2)(b) visited a convenience store at the intersection of § 87(2)(b) and § 87(2)(b). As they walked back to § 87(2)(b)'s house westbound on the north side of § 87(2)(b), § 87(2)(b) noticed an unmarked black vehicle making a left turn from § 87(2)(b) onto § 87(2)(b). The windows of the vehicle were rolled down slightly so that § 87(2)(b) made eye contact with the driver of the vehicle. § 87(2)(b) turned his head as the vehicle passed, maintaining eye contact with the driver. § 87(2)(b) began to cross from the north side of § 87(2)(b) to its south side in the crosswalk at § 87(2)(b) with § 87(2)(b). When they reached the south side of § 87(2)(b), the unmarked black vehicle pulled parallel with § 87(2)(b) and § 87(2)(b). The passenger of the vehicle, identified by the investigation as Det. Cleary, exited and said, "Stop. Freeze." § 87(2)(b) stopped, but § 87(2)(b) slowly backed away until the driver of the vehicle, identified by the investigation as Det. Lasalle, also exited, at which point he turned and ran. § 87(2)(b) told the CCRB that he ran because he did not know that Det. Lasalle and Det. Cleary, who wore plainclothes, were police officers. As he ran, Det. Lasalle told him, "Stop. Freeze." § 87(2)(b) ceased running of his own volition, fearing that if he did not he would be shot.

§ 87(2)(b) (Board Review 08) closely corroborated § 87(2)(b)'s account of events, except that he said it was Det. Lasalle who first said, "Stop right there." § 87(2)(b) said that he obeyed this command.

Det. Lasalle (Board Review 09) said that he knew of § 87(2)(b) before this incident because § 87(2)(b) had been the victim of a shooting. § 87(2)(e), § 87(2)(f)

Although § 87(2)(b) told the CCRB that he was not affiliated with any gang, his arrest report notes that he is a member of the § 87(2)(b) gang (Board Review 16).

As Det. Lasalle drove southbound on § 87(2)(b) at the intersection with an unknown street, he observed § 87(2)(b) crossing the street with § 87(2)(b). § 87(2)(b) was immediately in front of Det. Lasalle's police vehicle. § 87(2)(b) looked at the police vehicle and appeared to either elbow or tap § 87(2)(b) on his arm. Det. Lasalle saw § 87(2)(b)'s lips move, and believed he said, "That's the police," though he based this solely upon reading his lips and did not actually hear him say this. Det. Lasalle then noticed that § 87(2)(b)'s right hand was clenched into a fist. § 87(2)(b) put his hand in his front right jacket pocket, as though he was placing something inside. Det. Lasalle did not see § 87(2)(b) holding an object in that hand, and did not see him remove his right hand

from the pocket. Based upon this movement, his prior knowledge of § 87(2)(b) and the high-crime nature of the area, Det. Lasalle believed § 87(2)(b) was carrying a weapon. He suspected § 87(2)(b) of no other criminality. Det. Lasalle did not recognize § 87(2)(b) made no observations of him, and suspected him of no criminality.

Det. Lasalle told Det. Cleary, “Hold on. I want to talk to these guys.” Det. Lasalle pulled alongside § 87(2)(b) and § 87(2)(b) exited the vehicle, identified himself as a police officer, and asked to speak with § 87(2)(b). § 87(2)(b) looked over his shoulder a few times, bladed his body so that his right side faced away from the vehicle, and then walked away from Det. Lasalle. § 87(2)(b) moved only three to four feet away before he came to a stop.

Det. Cleary (Board Review 10) said he did not independently make any observations of § 87(2)(b) or § 87(2)(b) and that he first noticed them when Det. Lasalle told him that he had observed “something,” and that he wanted to “stop these guys.” When Det. Cleary exited the vehicle, either he or Det. Lasalle or both said, “Stop, police.” In response, both § 87(2)(b) and § 87(2)(b) fled in different directions. Det. Cleary pursued § 87(2)(b) only for a few seconds before he stopped of his own accord.

A person is considered to be stopped when they are detained by virtue of a significant interruption of liberty of movement. An officer may stop an individual when he reasonably suspects that the person has committed, is committing, or is about to commit a crime. People v. De Bour, 40 N.Y.2d 210 (1976) (Board Review 11). Innocuous behavior, even in a high crime area, does not provide reasonable suspicion. People v. Hampton, 200 A.D.2d 466 (1st Dept., 1994) (Board Review 12). A founded suspicion of criminal activity arises only when there is some present indication of criminality based on observable conduct or reliable hearsay information. People v. Boulware, 130 A.D.2d 370 (1st Dept., 1987) (Board Review 13). A defendant’s flight in response to an approach by the police, combined with other specific circumstances indicating that the suspect may be engaged in criminal activity, may give rise to reasonable suspicion. Flight alone, or even in conjunction with equivocal circumstances that might justify a police request for information, is insufficient to justify pursuit, as individuals can refuse to respond to police inquiry. People v. Holmes, 81 N.Y.2d 1056 (Board Review 14); People v. Buie, 89 A.D.3d 748 (2nd Dept., 2011) (Board Review 15).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegation A** be closed as **substantiated**.

Allegation B – Abuse of Authority: Det. James Cleary stopped § 87(2)(b)

It is undisputed that Det. Cleary stopped § 87(2)(b)

Det. Lasalle said that he made no observations of § 87(2)(b) and suspected him of no criminality. He nonetheless told Det. Cleary that he wished to talk to “these guys,” indicating both § 87(2)(b) and § 87(2)(b). Det. Lasalle said that upon exiting the vehicle, he identified himself as a police officer and asked § 87(2)(b) if he could speak with him. Det. Lasalle believed that § 87(2)(b) stopped of his own volition once he identified himself as an officer, though he did not intend this. He saw Det. Cleary speaking with § 87(2)(b) but did not know what conversation they had, or why Det. Cleary spoke to him.

As discussed above, Det. Cleary said that he independently made no observations of § 87(2)(b) or of § 87(2)(b) and that his sole basis for approaching § 87(2)(b) was Det. Cleary’s statement that he “thought he saw something,” and wanted to “stop these guys.” Det. Cleary said that upon exiting the police vehicle, he, or Det. Lasalle, or both, said, “Stop, police.”

Under the “Fellow Officer Rule,” officers are entitled to act on information received from other officers on the presumption that such information is reliable and accurate. People v. Powell, 101 A.D.3d 756 (2nd Dept., 2012) (Board Review 05).

§ 87(2)(g)

It is therefore recommended that **Allegation B** be closed as **exonerated**.

Allegation C – Abuse of Authority: Det. James Cleary drew his gun.

§ 87(2)(b) alleged that as Det. Cleary exited the vehicle, he drew his gun.

§ 87(2)(b) said that Det. Cleary did not draw his gun, Det. Cleary denied drawing his gun, and Det. Lasalle did not see Det. Cleary draw his gun.

§ 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **unfounded**.

Allegation D – Abuse of Authority: Det. Julio Lasalle frisked § 87(2)(b)

Allegation E – Abuse of Authority: Det. Julio Lasalle searched § 87(2)(b)

It is undisputed that Det. Lasalle frisked and searched § 87(2)(b) on scene.

§ 87(2)(b) alleged that as soon as he ceased fleeing, Det. Lasalle approached him and began frisking him by patting down his chest and torso. During the frisk, Det. Lasalle asked him, “Do you have any weapons on you?” § 87(2)(b) denied having any weapons, forgetting that he was carrying the box cutter. Det. Lasalle then reached into § 87(2)(b)’s front right pants pocket and pulled out the box cutter. Once the box cutter was retrieved, Det. Lasalle handcuffed § 87(2)(b). § 87(2)(b) estimated that he was close to the entrance of § 87(2)(b) or about 20 feet from the sidewalk where § 87(2)(b) stood, at the time Det. Lasalle asked him this question, frisked him, and searched him. Det. Cleary later walked over with § 87(2)(b) to where Det. Lasalle had § 87(2)(b) stopped. § 87(2)(b) said that about 10 seconds after Det. Cleary approached him, Det. Lasalle and § 87(2)(b) walked together back to where § 87(2)(b) was standing. § 87(2)(b) said that he did not see the entire encounter between Det. Lasalle and § 87(2)(b) as he was focused on Det. Cleary. § 87(2)(b) heard § 87(2)(b) tell Det. Lasalle that he was not

carrying any weapons. He did see Det. Lasalle reach into § 87(2)(b)'s pocket, remove the box cutter, and then place him in handcuffs.

Det. Lasalle said that § 87(2)(b) only fled about three or four steps from where he had been walking with § 87(2)(b) before he stopped of his own accord. Det. Lasalle said that once § 87(2)(b) stopped, he saw that § 87(2)(b) still had his hand in his right pocket. Det. Lasalle asked him if he had just placed something in his pocket, or if he had a weapon in his pocket. § 87(2)(b) replied that it was just a razorblade, and that he carried it for his protection. After receiving this response, Det. Lasalle considered § 87(2)(b) to be under arrest for § 87(2)(a) 160.50, the crime with which he was ultimately charged (Board Review 16). He frisked § 87(2)(b) recovered the box cutter from his pocket – where § 87(2)(b)'s hand still was – and then handcuffed him. The aforementioned box cutter was vouchered with § 87(2)(b)'s arrest (Board Review 17).

Det. Cleary estimated that by the time § 87(2)(b) and § 87(2)(b) stopped fleeing, they were about 100 feet from each other. Det. Cleary therefore indicated that he did not hear or see much of the interaction between § 87(2)(b) and Det. Lasalle, though he did see Det. Lasalle frisking § 87(2)(b) before he was placed in handcuffs.

An officer must reasonably suspect based upon a totality of the circumstances that a person is armed in order to conduct a frisk. People v. De Bour, 40 N.Y.2d 210 (1976) (Board Review 11). An officer who frisks a suspect and feels a possible weapon on a suspect's person may subsequently search the suspect for that possible weapon and remove it. People v. Walton, 4 Misc. 3d 1018(A) (Sup. Ct., Bronx Co. 2004) (Board Review 18). Officers are entitled to conduct frisks and searches incident to lawful arrests. People v. Hurdle, 93 A.D.2d 419 (1st Dept., 2012) (Board Review 19). A person is guilty of criminal possession of a weapon in the fourth degree when he possesses any dagger, dangerous knife, dirk, razor, stiletto, imitation pistol, or any other dangerous or deadly instrument or weapon with intent to use the same unlawfully against another. NYS Penal Law Section 265.01, Subsection 2 (Board Review 20).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegations D and E** be closed as **unsubstantiated**.

Allegation F – Abuse of Authority: Det. James Cleary questioned § 87(2)(b)

It is undisputed that Det. Cleary questioned § 87(2)(b) prior to frisking him. § 87(2)(b) said that upon approach, Det. Cleary asked him if he had any weapons, blades, or weed, and that § 87(2)(b) responded in the negative.

Det. Cleary said that he did not know for what suspected crime § 87(2)(b) was stopped, as he was acting only upon Det. Lasalle's instruction to stop both § 87(2)(b) and § 87(2)(b) an instruction upon which he did not further elaborate. Det. Cleary said that when he approached § 87(2)(b) he asked if he had any contraband, or weapons that could harm him, and that § 87(2)(b) told him he did not. Det. Cleary told the CCRB that he asked this question out of a general concern for his safety. He said he observed no suspicious bulges on § 87(2)(b)'s person, and § 87(2)(b) was generally cooperative.

Reasonable suspicion of criminality is required for a forcible stop. People v. DeBour, 40 N.Y. 2d 201 (1976) (Board Review 11). A police officer may not ask accusatory questions unless there is founded suspicion of criminal activity. People v. Hollman, 79 N.Y.2d 181 (1992) (Board Review 21).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegation F** be closed as **substantiated**.

Allegation G – Abuse of Authority: Det. James Cleary frisked § 87(2)(b)

Allegation H – Abuse of Authority: Det. James Cleary searched § 87(2)(b)

§ 87(2)(b) said that after Det. Cleary asked him if he had any weapons, blades, or weed, Det. Cleary frisked him by patting the exterior of his pants pockets and the chest pockets of his jacket. Det. Cleary then reached inside § 87(2)(b)'s front jacket pocket, where § 87(2)(b) carried his cell phone. Det. Cleary removed no items from § 87(2)(b)'s person.

§ 87(2)(b) said that while he was interacting with Det. Lasalle, he could not see what was happening with § 87(2)(b).

Det. Cleary said that when he asked if § 87(2)(b) had contraband or weapons, § 87(2)(b) denied having any weapons, and said that Det. Cleary could "check" him. Det. Cleary then frisked § 87(2)(b)'s waistband and his jacket pockets. Det. Cleary did not remember whether or not he searched § 87(2)(b). He did not remember if he felt any bulges in § 87(2)(b)'s clothing during the course of the search. Det. Cleary said that he only knew that he did not recover a weapon from § 87(2)(b).

Det. Lasalle said he did not see Det. Cleary frisk or search § 87(2)(b).

An officer must reasonably suspect based upon a totality of the circumstances that a person is armed in order to conduct a frisk. People v. De Bour, 40 N.Y.2d 210 (1976) (Board Review 11). An officer who frisks a suspect and feels a possible weapon on a suspect's person may subsequently search the suspect for that possible weapon and remove it. People v. Walton, 4 Misc. 3d 1018(A) (Sup. Ct., Bronx Co. 2004) (Board Review 18). Consent to search must be

supported by founded suspicion of criminality. People v. Dunbar, 5 N.Y.3d 834 (2005) (Board Review 29).

§ 87(2)(g)

§ 87(2)(g)

It is consequently recommended that **Allegations G** and **H** be closed as **substantiated**.

§ 87(4-b) § 87(2)(g)

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date